ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	95th Commission Meeting
DATE:	07 September 2022
TIME:	02:00 AM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1.	**Update on the recruitment and seek endorsement on the selection results – HRS** *HRS presented the status of recent recruitment undertaken with detailed processes. A total of 19 staff were recruited, 16 on contract and 3 on lateral transfer. It was appraised that upon getting the endorsement, those on contract will be joining the office from 15th September 2022.* *The meeting also discussed about those officials whose names are reflected in the payroll of the ACC, but currently serving in other agencies. While the Commission acknowledges that they are contributing for national cause, the significant number of officials is a concern when the Commission is faced with sustained HR shortage vis-a-vis challenging mandates.*	**The Commission endorsed the selection results as appraised.** **HRS to prepare for mandatory training immediately after the new staff joins the office. Toward this, the Commission also directed to engage the Security Officer to train new recruits.** **The Commission also directed the HRS to plan and process next recruitment to acquire the approved staff strength.** **The Commissioner in-charge and HRS to take up with the RCSC to get replacement of those who are on deputation/ LTT.** **The HRS was also asked to write a letter to GNHC, requesting for a planning officer to fill in the vacant post.**
2.	**Review of past non-compliance cases forwarded to OAG – ADMD & LD** *The ADMD presented the review of past non-compliance cases which were forwarded to OAG. The presentation underscored the challenges and inconsistencies in the imposition of penalties. Hence, the team presented a proposal going forward. (presentation slides attached as Annex I).* *The team also reported on the recent development with the new system. It was informed that starting the last reporting year,*	**The Commission acknowledged the proposals and the effort the team has put in. However, owing to the challenges, the Commission directed the Division to see if the ACC can enforce its own penalty for non-compliance cases to ensure consistency in the imposition. The ACC can write to the head of the agencies concerned and accordingly ask for the ATR.** **In this regard, the ADMD and LD were directed to incorporate some provisions in the Asset Declaration Rules which is**

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	those late and non-declarant have already started to deposit the penalties in a government account maintained with the RRCO.	**currently under review.** **In addition, if the Division wanted to pursue any discussion with the OAG, it was reminded to route through the focal committee.** **The Commission also directed the ADMD that the penalties for both late and non-declarant should be credited to the ACC's escrow account for proper accounting and reporting.**
3.	**Re-deliberation on the application received regarding the Kashithang Bacho – LD & SS** .	**While the Commission decided to stick with the same decision of the previous meeting, it was directed to defer any correspondence/work for now. The Commission intends to communicate directly with the BBS management.**
4.	**Present update on IVS and Integrity Assessment Certificate (IAC) - DoPS** *The Director, DoPS updated the progress report on IVS, especially on the work related to data cleaning. It was reported that the work is progressing well as per the plan. The Director also shared some of the challenges therein.* *The Commission asked the ED team joining the team of ECB on general advocacy to understand the concept, rationale, purpose and objective of the IVS. The team should be able to convey the same messages and concerns during the advocacy.*	The Commission commended the team for the progress and directed the following; **1. To be wary when dealing with the information as it has an impact on an individual's life. To this, directed to review the information thoroughly to ensure data integrity.** **2. Ensure complete status on cases/complaints/ATR/IE.** **3. To review and complete incomplete cases or complaints after data were sorted out.** **4. Report the progress of the work to the Commission weekly.** **The ED team to discuss on the IVS with the Director, DoPS.**
5.	**Update on budget and Finance – AFS** *The Sr. Finance Officer (FO) apprised that as decided, the budget expenses were updated in the google drive which was shared with the management. While reporting, the FO shared her concern over the TADA budget for DoI. It was informed that more than 60% of the budget has been already spent.* *The FO also updated on the ACC's audit report which was conducted recently.*	**Noting the limited TADA budget for the DoI, the Commission decided to explore on getting additional budget and at the same time the Commissioner in-charge was asked to initiate possible cost saving measures at department level.** **The Commission directed the FO to explore how far 50% DSA can be sanctioned.**

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6	**Seek direction on renewal of MoU with NLCS – PPD** *The PPD apprised about the proposal on renewal of MoU between the NLCS and the ACC. It was discussed that since MoU is not a legally binding document, it doesn't serve any purpose. So long a good working relationship can be maintained between the two institutions, the Commission doesn't feel necessary for a MoU.*	**Strengthen the working relation with our counterparts without having to sign MoU.** **In addition, DoI, LD and DoPS are directed to review the stalled cases and close it either through our own investigation or through joint investigation, whichever is necessary.**
7	**Others** **1. Discussion on HR, IVS and Financial matters.** **2. Field Office, Phuentsholing** *While the Commission continues to pursue with the RCSC to get formal endorsement on the establishment of Regional Office at Phuentsholing, as an interim measure and to rationalize expenditure, the Field Office, Phuentsholing will be treated as a Regional Office. This is initiated owing to the acute shortage of budget, especially budget related to travel.* **3. Vacant position of Director, DoPE** *The Commission discussed the vacant post of the director, DoPE.*	**HR issues and IVS to be a regular agenda of the Commission meeting and update on Finance to be made twice a month.** **Field Office Phuentsholing will be treated like the other two Regional Offices. Hence, the staff working there will be entitled for DSA only when they travel away from Phuentsholing. However, as similar to the staff of two Regional Offices, those on 20% allowance to get 45% allowance given their responsibility to undertake all three mandates of investigation, prevention and education. Thus, HRS to issue sanction order and AFS to make the payment.** **The Commissioner In-charge to take the matter with the RCSC and discuss with the Focal Commissioner of the RCSC.**

Commissioner **Commissioner** **Chairperson**

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